

		The Case Management Conference remains set for 11/2/26 at 10:00 am in Dept. W8. As Plaintiff has now filed a proof of service re service of the summons and complaint (ROA 23), the court DISCHARGES the Order to Show Cause also set for 11/2/26. Moving party to give notice.
5	Bello Guevara vs. Bayer AG	<u>Motion to Set Aside/Vacate Dismissal</u> The court GRANTS Plaintiffs' unopposed Motion to Set Aside Dismissal. The court dismissed this action without prejudice on 3/30/26, after Plaintiffs failed to file a status report as ordered, failed to appear for the Order to Show Cause re Dismissal on Settled Case, and defense counsel stated that Plaintiff's counsel had been unresponsive to communication attempts. (See 3/3/0/26 Minute Order.) Plaintiffs now move to set aside the dismissal on the ground that Plaintiffs' counsel HARRY SADEHGI admitted fault, stating he failed to appear due to a health condition. The Declarations of Harry Sadeghi and Dr. Babaali filed in support of Plaintiffs' motion sufficiently establishes grounds for either mandatory or discretionary relief. Thus, relief is granted pursuant to Section 473(b) of the Code of Civil Procedure. The court VACATES the order of dismissal entered on 3/30/26. The court also sets a new Order to Show Cause re Dismissal on Settled Case for December 7, 2026, at 9:00 am in Dept W8. No appearance is necessary if dismissal of entire action is filed and entered with the court. If dismissal of entire action is not entered, all counsel of record are to appear.